

Smt. Sunita Mathur vs Ranchod Das on 3 September, 2022

Author: Amar Nath Kesharwani

Bench: Amar Nath Kesharwani

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IN THE HIGH COURT OF MADHYA PRADESH AT INDORE

FA No. 531 of 2002
(SMT. SUNITA MATHUR Vs RANCHOD DAS)

Dated : 03-09-2022

Ms. Nandini Sharma, learned counsel for the appellant.
Shri Harish Joshi, learned counsel for the proposed legal
representatives of respondent No.1(a), (Mr. Jai Prakash, Mr.

Dharmendra Yadav, and respondent No.1(b)-Suhagi.

Shri Durgesh Sharma, learned counsel for the proposed legal representatives of respondent No.1(a),
(Mrs. Neha Yadav, Mrs. Ayushi Yadav, and Mr. Subham Yadav).

Heard on I.A. No.7315/2021 to the learned counsel for the appellant, respondent, and learned
counsel for proposed LR of expired-respondent No.1(a) Radheshyam Yadav.

Shri Durgesh Sharma, learned counsel for the proposed legal representatives of respondent No.1(a),
(Mrs. Neha Yadav, Mrs. Ayushi Yadav, and Mr. Subham Yadav) submits that he has no objection on
I.A. No.7315/2021.

Learned counsel for the appellant submits that during the pendency of the present appeal,
respondent No.1(a)Radhesyam Yadav s/o Late Shri Rachoddas Yadav has died on 10.7.2021, the
death certificate is annexed as Annexure "A", and hence, prays to allow the application and to
implead the names of proposed LR of expired respondent No.1(a)Radhesyam Yadav as mentioned
in the application.

Shri Harish Joshi, learned counsel for the proposed legal representatives of respondent No.1(a),
(Mr. Jai Prakash, Mr.

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Dharmendra Yadav and respondent No.1(b)-Suhagi has filed the reply to I.A. No.7315/2021 and
stated that after the death of Radheyshyam, his legal wife - Sugna Bai and sons Jai Prakash and

Dharmendra are legal representatives and they are necessary party but in spite of knowledge of the fact, appellant deliberately has not made party to Radheshyam's wife(Sugna Bai) and appellant unnecessary has proposed to join Neha, Ayushi, and Shubham as LR's of deceased Radheshyam. It is also stated that Ranchod Das (original respondent No.1) executed a will in favour of Jaiprakash on 27.12. 2002, which is already on record before the learned trial court as Exhibit P-2, therefore, Neha Yadav, Ayushi Yadav, and Shubham Yadav are unnecessary parties to the case and on this ground alone this application deserves to be rejected. It is also stated that the respondent No.1(a) Radheshyam expired on 10.07.2021 and the application had to be submitted before 09.10.2021, it appears that the application has been submitted on 30.10.2021 therefore it is barred by time and no application for condonation of delay has been submitted therefore on this ground also this application deserves to be rejected and appeal be dismissed as abated because respondent No.2 Babulal and respondent No.3-Basanti Lal have also expired on 11.07.2006 and 13.10.2012 respectively and no appropriate application has been submitted within time. Hence, prays for dismissal of the application as well as appeal with heavy compensatory cost.

On the point of limitation, learned counsel for the appellant has placed reliance upon an order passed by the Apex Court in *Suo Motu Writ Petition (C) No.3 of 2020* in "In Re: Cognizance For Extension Of Limitation" order dated 10.01.2022 and on the issue of non-

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impleadment of legal representatives of expired respondents, he placed reliance on the case of *Perumon Bhagvathy Devaswom, Perinadu Village Vs. Bhargavi Amma (Dead) by Lrs and others*, (2008) 8 SCC, 321. Learned counsel for the appellant submitted that information regarding the death of Babulal-respondent No.2 and Basantilal -respondent No.3 came into the knowledge of the appellant, when the reply was filed on 16.06.2022 and in that context, he will file an appropriate application on the next date.

I have considered the arguments advanced by the learned counsel for the parties and perused the record and gone through the citations placed by the learned counsel.

Hon'ble Apex Court in "*In Re: Cognizance For Extension Of Limitation*" *Suo Motu Writ Petition (C) No.3 of 2020* with Misc. Application No. 665 of 2021, 21 of 2022 and 29 of 2022 has passed following order on 10/01/2022 regarding the extension of limitation-

III. In cases where the limitation would have expired during the period between 15/03/2020 till 28/02/2022, notwithstanding the actual balance period of limitation remaining, all persons shall have a limitation period of 90 days from 01/03/2022. In the event, the actual balance period of limitation remaining, with effect from 01/03/2022 is greater than 90 days, that longer period shall apply.

Since it was stated that Radheshyam Yadav [Respondent no. 1(a)] has expired on 10/07/2021 and it is stated on behalf of the respondent that the limitation expired on 10/10/2021, but, by the order of Hon'ble Apex Court passed in the aforementioned case, the limitation was extended 90 days with

effect from 01/03/2022 and present application for bringing the LRs on record has been filed on

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30/10/2021 which was before the expiration of extended period of limitation. Therefore, the objection raised on behalf of the respondent No.1(b) is ruled out.

Learned counsel for the proposed legal representatives of respondent No.1(a), (Mrs. Neha Yadav, Mrs. Ayushi Yadav, and Mr. Subham Yadav) submits that Mrs. Neha Yadav, Mrs. Ayushi Yadav, and Mr. Subham Yadav are the children of second wife of deceased Radheshyam and as per the provision of Section 16 of Hindu Marriage Act, they are the legal representatives of deceased Radheshyam and therefore, they are entitled to be incorporated in present appeal as legal heirs.

Section 16 of Hindu Marriage Act, 1955 provides that :-

"16 Legitimacy of children of void and voidable marriages. (1) Notwithstanding that marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity. (3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null

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and void or which is annulled by a decree of nullity under section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents." Written statement filed on behalf of Ranchod Das (Ranchod Lal) before the trial court, it was pleaded that the plaintiff Smt. Sunita Mathur had resided with Radheshyam as husband and wife, and it is not disputed in the fact that Mrs. Neha Yadav, Mrs. Ayushi Yadav, and Mr. Subham Yadav are the children of second wife of deceased Radheshyam. As per the provisions of Order 22 of C.P.C., 1908, all the legal representatives of deceased defendant/plaintiff should be impleaded in the case. Therefore, I.A. No.7315/2021 is hereby allowed and it is directed that the names of proposed legal representatives of the deceased respondent-Radheshyam and the name of Sugni Bai-first wife of Radheshyam Yadav, be also

incorporated in the appeal memo within 15 working days.

In the light of Hon'ble Apex Court judgment delivered in case of Perumon Bhagvathy Devaswom, Perinadu Village Vs. Bhargavi Amma (Dead) by Lrs and others (Supra), it is directed to the learned counsel for the appellant that necessary steps be taken within 15 working days, to bring the LRs of respondent No.2-Babulal and respondent No.3-Basantilal, who are said to have expired on 11.07.2006 and 13.10.2012 respectively.

(AMAR NATH (KESHARWANI)) JUDGE N.R.